

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

TPG PRESSURE, INC., *Complainant*

v.

OMNI LOGISTICS LLC AND EPIC FREIGHT SOLUTIONS LLC,
Respondents.

DOCKET NO. 22-31

Served: August 2, 2023

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge.*

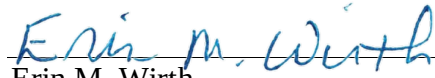
REVISED SCHEDULING ORDER

On August 1, 2023, Complainant TPG Pressure, Inc. (“TPG”), and Respondents Omni Logistics LLC (“Omni”) and Epic Freight Solutions LLC (“Epic”) filed a joint request to modify the scheduling order and extend the initial decision deadline (“Motion”). The parties seek an extension of approximately two months for the remaining deadlines, asserting that “[d]espite the diligence and best efforts of the Parties and their counsel, they are unable to adequately develop facts of the case” within the current schedule. Motion at 4. The parties state that a Respondent was added when the first amended verified complaint was filed on February 27, 2023, after which there was a motion to dismiss the amended complaint and then discovery commenced, with the parties producing over 100,000 pages. Motion at 2-4.

The parties have been working together to resolve discovery disputes and narrow requests. The proposed revised schedule has been agreed to by all parties and is reasonable. The undersigned will request an extension of the initial decision deadline from the Commission at an appropriate time. The parties are hereby **ORDERED** to follow this schedule:

September 29, 2023	Complete depositions of fact witnesses.
October 6, 2023	Disclosure of Complainant’s expert reports.
October 25, 2023	Last day to serve written discovery requests.
October 27, 2023	Disclosure of Respondents’ rebuttal expert reports.
November 17, 2023	Complete expert depositions. Close of all discovery.
December 8, 2023	Complainant’s brief, proposed findings of fact, and appendix.
December 29, 2023	Respondents’ opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix.
January 12, 2024	Complainant’s reply brief and responses to proposed findings of fact.

The parties should review the December 6, 2022, initial order and May 12, 2023, scheduling order for additional requirements for filing briefs. The parties should cite Commission case law supporting their legal arguments and cite evidence in their appendix by bates page numbers to support their positions. Selected FMC cases, including F.M.C. from 1919-1987 and F.M.C.2d from 2018 to present are available at www.fmc.gov/activity-logs. The parties are encouraged to discuss resolution of the proceeding, and if settlement is reached, they must submit a motion seeking approval of the settlement agreement, with a copy of the settlement agreement attached.



Erin M. Wirth

Chief Administrative Law Judge